



MATRIX LEGAL SERVICES

PROFESSIONAL CORPORATION

INITIAL INTERVIEW

MVA Date:

Conflict Checked?	Yes ☐ No ☐	Conflict Find?	Yes ☐ No ☐	File No:	
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Percent:

Date of MVA:		Client Interviewed By:	
Client Interviewed On:		Client Referred By:	

PART TWO: PERSONAL DATA

Male ☐ Female ☐					
Last Name:					
First Name:					
First and Last Name:					
Address:	Unit No	☐	Street No		
Gender:	City:		Province:		Post Code:
Date of Birth :		Age		Dependants?	Yes ☐ No ☐
Home Phone :		Cell Phone:			
Work Phone:		E-Mail:			
Marital Status:	Single ☐ Married ☐ C-Law ☐ Separated ☐ Divorced ☐ Widow ☐				

Driver's License No. Copy?	Yes ☐ No ☐	
Health Card No.: Copy?	Yes ☐ No ☐	
Social Insurance No.: Copy?	Yes ☐ No ☐	
Ontario ID Card: PR: ☐ Citizen: ☐ No.: Copy?	Yes ☐ No ☐	

Client choose to receive the following benefit:

Income Replacement Benefit

Non-Earner Benefit

Caregiver Benefit

Does the client speak English?	Yes ☐ No ☐		
Does the client require an interpreter?	Yes ☐ No ☐	Language?	
Was client born in Canada?	Yes ☐ No ☐	Where?	
Year immigrated to Canada?			

Client was a:

Driver of Vehicle Insured under this Policy ☐	Passenger of Vehicle Insured under this Policy ☐	Pedestrian or Cyclist ☐	Driver or Passenger of a vehicle not insured under this Policy ☐
Other: ☐			
Seat Belted:	Yes ☐ No ☐		

Did the Accident occur While at the work?	Yes ☐ No ☐
- If yes, did client file claim with W.S.I.B?	Yes ☐ No ☐

Accident location:

Street Name:			
Major Intersection:			
City:		Province:	
Time of M.V.A:		Accident Reported to the Police?	Yes ☐ No ☐
Date of Reported:		Did Police come to Scene?	Yes ☐ No ☐
Police Department/Collision Reporting Centre:			
Incident No:		Officer:	Badge No:
Was the client charged?	Yes ☐ No ☐	Description:	
Was Third Party charged?	Yes ☐ No ☐	Description:	
Number of Occupants in Vehicle:		Seating Arrangement:	
Are there photos of the damages?	Yes ☐ No ☐	Estimated Property Damage:	\$

THIRD PARTY INSURANCE INFORMATION:

Driver:					
Address:					
Driver's License No:				Phone No:	
Name of your Insurance Company:					
Address:					
Name of Adjuster:					
Phone No.:			Fax No.:		
Policy No.:			Claim No.:		
Name of policy Holder:					
Automobile Make:		Model:		Year:	
License Plate Number:					

MEDICAL & TREATMENT INFORMATION

Did the client go to Hospital?	Yes ☐ No ☐	Ambulance required?	Yes ☐ No ☐
Name of Hospital:			
Address:			
Admission date:		Discharge date:	
X-Ray Taken?		Yes ☐ No ☐	

FAMILY DOCTOR

Family Physician:					
Address:					
City:		Province:		Post Code:	
Phone No.:			Fax No.:		

PHYSIO, CHIRO, MASSAGE ETC.

TREATMENT PROVIDER(S) #1

Treatment centre :					
Address:					
Phone No.:			Fax No.:		
Type of treatment:	Physio. ☐	Chiro. ☐	Rehab. ☐	Psych. ☐	

TREATMENT PROVIDER(S) #2

Treatment centre :					
Address:					
Phone No.:			Fax No.:		
Type of treatment:	Physio. ☐	Chiro. ☐	Rehab. ☐	Psych. ☐	

TREATMENT PROVIDER(S) #3

Treatment centre :					
Address:					
Phone No.:			Fax No.:		
Type of treatment:	Physio. ☐	☐	Rehab. ☐	Psych. ☐	

TREATMENT PROVIDER(S) #4

Treatment centre :					
Address:					
Phone No.:			Fax No.:		
Type of treatment:	Physio. ☐	Chiro. ☐	Rehab. ☐	Psych. ☐	

Medication:

List of Medication Prescribed:

1)	3)
2)	4)

POST-ACCIDENT MEDICAL CONDITIONS

Pain and discomfort in the following areas:

Head		Ribs	L ☐ R ☐	Headaches	
Face	L ☐ R ☐	Abdomen	L ☐ R ☐	Dizziness	
Eyes	L ☐ R ☐	Upper Back		Ringing in the ears	
Nose	L ☐ R ☐	Mid Back		Problems with hearing	
Ears	L ☐ R ☐	Lower Back		Blurred Vision	
Jaw	L ☐ R ☐	Hips	L ☐ R ☐	Forgetfulness	
Teeth	L ☐ R ☐	Pelvis	L ☐ R ☐	Tingling	
Neck	L ☐ R ☐	Thighs	L ☐ R ☐	Numbness	
Shoulders	L ☐ R ☐	Knees	L ☐ R ☐	Irritability	
Arms	L ☐ R ☐	Legs	L ☐ R ☐	Anxiety	
Wrists	L ☐ R ☐	Ankles	L ☐ R ☐	Stress	
Hands	L ☐ R ☐	Feet	L ☐ R ☐	Depression	
Fingers	L ☐ R ☐	Toes	L ☐ R ☐	Lack of sleep	
Chest				Nightmares (general)	
Radiating pain down Arm(s)			L ☐ R ☐	Flashbacks to MVA	
Radiating pain down leg(s)			L ☐ R ☐	Periodic crying	
Signature: _____				Low self-esteem	
				Loss of incentive	
				Fear of Driving	
				Nervous when a passenger	
				Withdraw from others	
				Poor appetite	
				Loss of weight	
				Decrease sex drive	
				Fatigue/ low energy	
				Short-tempered	
				Spousal arguments	
				Over-react to small things	
				Excessive worry	
				Suicidal thought	

PRE-ACCIDENT MEDICAL CONDITIONS

Condition:	
Time Frame:	
Operative Procedure:	
Pre-accident Status:	
Post-accident Status:	

FINANCIAL & INCOME INFORMATION

- ☐ Employed highest average weekly income = last 52 weeks ____ last 4 weeks ____
- ☐ Self-Employed
- ☐ Unemployed but worked 26 weeks in last 52 weeks
- ☐ Written contract / agreement to start work within one year
- ☐ Client is receiving E.I benefits
- ☐ Unemployed
- ☐ Retired
- ☐ Student or Recent graduate
- ☐ Caregiver

LOSS OF INCOME / LOSS COMPETITIVE ADVANTAGE CLAIM: Yes ☐ No ☐

CURRENT EMPLOYER 1:

Employer:					
Address:					
Phone:			Fax:		
Occupation:			Salary / Wages:		
Hours worked (per week):			Length of Employment:		
Nature of work: Light ☐ Medium ☐ Heavy ☐			Last Day Worked:		

CURRENT EMPLOYER 2: Did go back to Work? Yes No

Employer:					
Address:					
Phone:			Fax:		
Occupation:			Salary / Wages:	\$	
Hours worked (per week):			Length of Employment:		
Nature of work: Light ☐ Medium ☐ Heavy ☐			Last Day Worked:		

CURRENT EMPLOYER 3:

Employer:			
Address:			
Phone:		Fax:	
Occupation:		Salary / Wages:	\$
Hours worked (per week):		Length of Employment:	
Nature of work: Light ☐ Medium ☐ Heavy ☐		Last Day Worked:	

CAREGIVER

Was the client the primary caregiver for anyone (any children under 16 and/or and children or dependents mentally disabled) prior to the M.V.A? Yes ☐ No ☐

	Name:	Date of Birth:	Disabled? (circle one)
1)			Yes ☐ No ☐
2)			Yes ☐ No ☐
3)			Yes ☐ No ☐
4)			Yes ☐ No ☐
5)			Yes ☐ No ☐
6)			Yes ☐ No ☐

Do the client's injuries prevent him / her from performing care giving activities? Yes ☐ No ☐

From:		Return to care giving duties?	
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Explanation:

EDUCATION/TRAINING

Yes

No

Name of institution:					
Address:					
Is client still attending school?		Yes ☐ No ☐		Date:	
Date Last Attended:				Projected Completion:	
Career Goals:					
Was client able to return to school following M.V.A?				Yes ☐ No ☐	
				Date:	
Course(s) / Activities Dropped:		1)		2)	

OTHER INSURANCE/COLLATERAL BENEFITS

Does the client or the client's spouse or anyone the client is dependent on have any other benefit Plan?			Yes ☐ No ☐
Name Of Insurance:	Type Of insurance:	Policy/Certificate No:	

In the last 52 weeks, has the client received any income from a disability Plan? Yes ☐ No ☐*If yes, enter dates:*

From:		To:	
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In the client receiving employment insurance benefits? Yes ☐ No ☐*If yes, enter dates:*

From:		To:	
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In the client receiving social assistance (Welfare)? Yes ☐ No ☐*If yes, enter dates:*

From:		To:	
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INCOME TAX STATUS:

Was the client paying support on the date of the accident? Yes ☐ No ☐

From:		Total paid:	\$
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Marital status for Tax purposes: Single ☐ Married ☐ Equivalent to married ☐			
What is the expected annual income of spouse for the calendar year in which the M.V.A. occurred \$ _____			
What is the expected annual income of spouse for the calendar year in which the M.V.A. occurred \$ _____			
Did the client claim the disability amount non-refundable <i>TAX CREDIT</i> on the Client's recent income tax return? Yes ☐ No ☐			

EXPENSE INFORMATION

Name of housekeeper:			
Address:			
Phone:		No. of hours worked per week:	
Amount paid per week:		Cash ☐ Cheques ☐	

Name of Caregiver:			
Address:			
Phone:		No. of hours worked per week:	
Amount paid per week:		Cash ☐ Cheques ☐	

Name of Care Person:			
Address:			
Phone:		No. of hours worked per week:	
Amount paid per week:		Cash ☐ Cheques ☐	

Return form to*

Application for Accident Benefits (OCF-1)

Attention:

Claim Number

Policy Number

Date of Accident (yyyy/mm/dd)

**For insurance companies: Add your contact and return instructions*

Fill out this form if you are applying for benefits as a result of an automobile accident, and you haven't applied for benefits related to this incident before. You need to tell your insurance company within 7 days of your accident you plan to apply for benefits. If you can't do that within 7 days, let your insurance company know as soon as possible.

This Application for Accident Benefits form must be returned within 30 days after receipt. If you are unable to return it within 30 days, submit it to your insurance company and explain reason for the delay. Return the original form to the insurance company and make a copy for your records. If you require more information about the claims process, please visit [FSRA's webpage](#).

Part 1 - Applicant Information

First Name	Last Name	Date of Birth (yyyy/mm/dd)	Driver's Licence Number
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Address

Unit Number	Street Number	Street Name	City
Province	Postal Code	Phone Number	E-mail Address
Gender	Languages Used		

Marital Status

☐ Separated ☐ Common-Law ☐ Married ☐ Single ☐ Divorced ☐ Widow(er)

If offered by your insurer, do you consent to the use of electronic communication? ☐ Yes ☐ No

Note: Your insurer may not offer electronic communication

Part 2 - Policy Details

What is your relationship to the policyholder? (Select all that apply)

- ☐ I am the Policyholder ☐ Spouse of Policyholder ☐ Listed Driver
- ☐ Employee of the Policyholder ☐ A vehicle you rented or leased for more than 30 days
- ☐ Dependent of the Policyholder or the Policyholder's spouse ☐ I have no relationship to the Policyholder

Are you aware of any coverage under any other automobile policies that would apply to you?

☐ Yes ☐ No ☐ I don't know

If yes, list insurer(s) and policy number(s)

APPLICATION FOR ACCIDENT BENEFITS (OCF-1)

Additional Sheet

Re:

Accident:

Part 3 – Brief Description of the Accident and Injuries:

How were you involved in the accident?

- ☐ Driver of Vehicle Insured under this Policy ☐ Passenger of Vehicle Insured under this Policy
☐ Pedestrian or Cyclist ☐ Driver or Passenger of a vehicle not insured under this Policy
☐ Other, please provide details

Part 3 - Accident Details

Location of the Accident (Intersection, City, Province/State)

Date (yyyy/mm/dd) and Time of Accident

☐ AM☐ PM

Give a brief description of the accident. Describe all injuries sustained as a result of the accident.

Select all that apply

- ☐ Went to collision reporting centre ☐ Police attended ☐ Ambulance attended ☐ Went to the hospital
☐ Went to doctor/nurse practitioner/other Regulated Healthcare Provider (e.g., Physiotherapist, Chiropractor etc.)

If you have additional information such as a police report, medical report please include with this form or send once received.**Were you charged?**

- ☐ Yes ☐ No If yes, list charge:

Did the accident happen while you were working? ☐ Yes ☐ No**Did the accident happen while you were travelling to and/or from work?** ☐ Yes ☐ No**Part 4 - Applicant Status****At the time of the accident were you engaged in any of the following (Select all that apply)****Working** ☐ Full-Time ☐ Part-Time ☐ Self-Employed

Not Currently Working ☐ Unemployed ☐ Receiving Employment Insurance ☐ Retired ☐ Student
☐ Caregiver ☐ Worked 26 weeks in the past 52 weeks ☐ Receiving Workplace Safety and Insurance Board Benefits

Select Yes, No or Not Applicable (N/A) for each of the followingI have missed time from pre-accident activities as a result of the accident ☐ Yes ☐ No ☐ N/A Date returned to pre-accident activities (yyyy/mm/dd)I have missed time from work as a result of the accident ☐ Yes ☐ No ☐ N/A Date returned to work (yyyy/mm/dd)I have missed time from school as a result of the accident ☐ Yes ☐ No ☐ N/A Date returned to school (yyyy/mm/dd)

Part 5 - Other Insurance

Do you, your spouse or anyone you are dependent on have any other benefit plan that covers you ☐ Yes ☐ No (e.g. group benefits, extended health coverage, etc.)?

Name of benefit companies and policy number(s)

Type of Coverage (Select all that apply)

☐ Medical ☐ Dental ☐ Short Term Disability ☐ Long Term Disability ☐ Other

Part 6 - Authorization for Insurance to Directly Pay Service Provider

(Only applicable to applicants obtaining treatment/service from a licensed service provider)

☐ I direct the insurer, including the Motor Vehicle Accident Claims Fund, to pay the licensed service provider directly for that portion of the approved goods and services specified in separate forms, Treatment Confirmation Form (OCF-23) and Treatment and Assessment Plan (OCF-18), that are not covered by extended/supplementary health insurance.

Applicants that have extended/supplementary health insurance responding to a claim may need to provide payment out of pocket before the extended/supplementary health insurer reimburses the claimant.

Initials of Applicant or
Substitute Decision Maker

Part 7- Motor Vehicle Accident Claims Fund

The insurer that first receives your completed application for accident benefits is responsible for paying you the benefits to which you are entitled without delay. If you have not applied to the correct insurer your benefits will not be affected. It is the responsibility of the insurer to take the necessary steps to get the correct insurance company to respond to your claim. You should apply to the Motor Vehicle Accident Claims Fund **only if no other insurance is available**.

You and your substitute decision maker acknowledge that you have the responsibility to investigate and apply to all potential insurers to which the applicant may have recourse BEFORE submitting an application to the Motor Vehicle Accident Claims Fund (MVACF) at 222 Jarvis St., 7th Floor, Toronto, ON M7A 0B6. If you have any questions about your MVACF application contact: MVACF in Toronto at (416) 250-1422 or Toll Free at 1-(800) 268-7188.

You and your representative acknowledge that the application **MUST INCLUDE** a completed:

- ☐ NOTICE OF COLLECTION OF PERSONAL INFORMATION FORM, signed and attached*
- ☐ Form 3 – Section 6 MVACF Application for Statutory Accident Benefits, signed and attached*
- ☐ Motor Vehicle Accident (Police) Report, attached.

before the applicant can make an application for the payment of accident benefits from the MVACF.

(* These forms are available at [Motor Vehicle Accident Claims Fund](#))

I certify that I have read this part and understand that this application for accident benefits is not complete until the required forms are completed, signed and provided to the MVACF.

Name of Applicant or Substitute Decision Maker	Signature of Applicant or Substitute Decision Maker	Date Signed (yyyy/mm/dd)
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To the insurer to whom this application is being submitted

I UNDERSTAND that you, and persons acting for you, will collect personal information and personal health information about me that is related to my claims for accident benefits arising out of the accident described in this application, and that all such information will be collected directly from me or from any other person with my consent.

I ALSO UNDERSTAND that you and persons acting for you will collect information about my driving record, automobile insurance policy history and automobile insurance claims history if they exist.

I ALSO UNDERSTAND that if I am the holder of an automobile insurance policy, you, and persons acting for you, will collect the driving record, automobile insurance policy history and automobile insurance claims history of any listed drivers on my automobile insurance policy or other drivers whom I have permitted to drive my automobile.

I ALSO UNDERSTAND that the information described above will be collected and used only as reasonably necessary for the purposes of:

- Investigating my claims and processing my claims as required by law, including the Ontario Automobile Policy;
- Obtaining or verifying information relating to my claims in order to determine entitlement and the proper amount of payment;
- Recovering payment from insurers and others liable in law for amounts that you pay in connection with my claims;
- Identifying and analyzing the nature and costs of goods and services that are provided to automobile accident victims by health care provider;
- Preventing, detecting and suppressing fraud;
- Compiling anonymized statistics for government agencies; and
- Assessing underwriting risks and claims experience.

I ALSO UNDERSTAND that you, and persons acting for you, may disclose this information to the following persons or organizations, who may collect and use this information only as reasonably necessary to enable you or them to carry out the purposes described above:

Insurers; insurance adjusters, agents and brokers; employers; health care professionals; hospitals; accountants; financial advisors; solicitors; organizations that consolidate claims and underwriting information for the insurance industry; fraud prevention organizations; other insurance companies; the police; databases or registers used by the insurance industry to analyze and check information provided against existing information; and my agents or representatives as designated by me from time to time.

I ALSO UNDERSTAND that you, and persons acting for you, may pool this information with information from other sources and may analyze this information for the limited purpose of preventing, detecting or suppressing fraud.

I CONSENT and, if I am the holder of an automobile insurance policy, declare that I have obtained consent from the listed drivers on my policy and any other drivers whom I have permitted to drive my automobile, to you collecting, using and disclosing this information in the manner described above, but no more of such information than is reasonably necessary to meet the legitimate purpose of such collection, use or disclosure.

I UNDERSTAND that if I have any questions about this consent I am free to consult with my insurance company representative or legal advisor before signing this document.

I AM ALSO AWARE that you, and persons acting for you, may be required or permitted by law to disclose this information to others without my knowledge or consent. I certify that the information provided is true and correct.

I understand that it is an offence under the Insurance Act to knowingly make a false or misleading statement or representation to an insurer under a contract of insurance. I further understand that it is an offence under the Criminal Code for anyone, by deceit, falsehood, or other dishonest act, to defraud or attempt to defraud an insurance company.

To obtain further information about how your consent relates to pooling and data analytics to prevent and detect fraud please visit: [Insurance Bureau of Canada](#)

Warning– Offences

It is an offence under the Insurance Act to knowingly make a false or misleading statement or representation to an insurer in connection with the person's entitlement to a benefit under contract of insurance. The offence is punishable on conviction by a maximum fine of \$250,000 for the first offence and a maximum fine of \$500,000 for any subsequent conviction.

It is an offence under the Criminal Code for anyone to knowingly make or use a false document with the intent it be acted on as genuine and the offence is punishable, on conviction, by a maximum of 10 years imprisonment.

It is an offence under the Criminal Code for anyone, by deceit, falsehood or other dishonest act, to defraud or to attempt to defraud an insurance company. The offence is punishable, on conviction, by a maximum of 14 years imprisonment for fraud involving an amount over \$5,000 or otherwise a maximum of 2 years imprisonment.

Name of Applicant or Substitute Decision Maker	Signature of Applicant or Substitute Decision Maker	Date Signed (yyyy/mm/dd)

Return this form to:

Permission to Disclose Health Information (OCF-5)

Use this form for accidents that occur on or after January 1, 1994.
Collection, use and disclosure of this information is subject to all applicable privacy legislation.

Claim Number:

Policy Number:

Date of Accident:
(YYYYMMDD)

Part 1 Applicant Information

Last Name				First Name and Initial				Date of Accident		year month day	
Address											
City						Province			Postal Code		
Birth Date		year month day		Home Telephone				Work Telephone Extension			

Part 2 Insurance Company Information

Name of Insurance Company											
Name of Insurance Company Representative											
Address						City					
Province			Postal Code		Telephone Number				FAX Number		

Part 3 Treating Health Professional

Name of Health Professional						Health Profession					
Address											
City						Province			Postal Code		
Telephone Number						FAX Number					

Part 4 Signature

I authorize my treating health professional to collect, use and disclose to my insurer or to a health professional, social worker, or vocational rehabilitation expert properly appointed by my insurer to conduct an examination, only such information relating to my health condition and treatment received as a result of the automobile accident and any pre-existing or subsequently occurring health conditions that may be a barrier to my recovery as a result of the automobile accident, as is reasonably required for the purpose of providing treatment and determining my eligibility for benefits. This authorization is valid until my claim for Statutory Accident Benefits has been concluded or until I withdraw this consent. (Please note withdrawal of this consent may impact your benefit entitlement).

This authorization does not apply to a consultation between my health care provider and the insurer's health professional conducting an examination. Separate express consent is required for this consultation. This consent should be in writing.

Name of Applicant or Substitute Decision Maker (please print)				Signature of Applicant or Substitute Decision Maker				Date (YYYYMMDD)	
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Return this form to:

Permission to Disclose Health Information (OCF-5)

Use this form for accidents that occur on or after January 1, 1994.
Collection, use and disclosure of this information is subject to all applicable privacy legislation.

Claim Number:

Policy Number:

Date of Accident:
(YYYYMMDD)

Part 1 Applicant Information

Last Name				First Name and Initial				Date of Accident		year month day	
Address											
City						Province			Postal Code		
Birth Date		year month day		Home Telephone				Work Telephone Extension			

Part 2 Insurance Company Information

Name of Insurance Company											
Name of Insurance Company Representative											
Address						City					
Province			Postal Code		Telephone Number				FAX Number		

Part 3 Treating Health Professional

Name of Health Professional						Health Profession					
Address											
City						Province			Postal Code		
Telephone Number						FAX Number					

Part 4 Signature

I authorize my treating health professional to collect, use and disclose to my insurer or to a health professional, social worker, or vocational rehabilitation expert properly appointed by my insurer to conduct an examination, only such information relating to my health condition and treatment received as a result of the automobile accident and any pre-existing or subsequently occurring health conditions that may be a barrier to my recovery as a result of the automobile accident, as is reasonably required for the purpose of providing treatment and determining my eligibility for benefits. This authorization is valid until my claim for Statutory Accident Benefits has been concluded or until I withdraw this consent. (Please note withdrawal of this consent may impact your benefit entitlement).

This authorization does not apply to a consultation between my health care provider and the insurer's health professional conducting an examination. Separate express consent is required for this consultation. This consent should be in writing.

Name of Applicant or Substitute Decision Maker (please print)				Signature of Applicant or Substitute Decision Maker				Date (YYYYMMDD)	
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Return this form to:

Election of Income Replacement, Non-Earner or Caregiver Benefit (OCF-10)

Use this form for accidents that occur on or after November 1, 1996

Claim Number:

Policy Number:

Date of Accident:
(YYYYMMDD)

Although you may be eligible for the Income Replacement Benefit, Non-Earner Benefit and/or the Caregiver Benefit, you can only receive one of these benefits. You must choose which benefit you wish to receive. **Please note that your choice of benefits cannot be changed after this form has been submitted to the insurance company unless the injury is determined to be catastrophic. If you need help in choosing the benefit, please contact your insurance company representative immediately.** Return this form no later than **30 days** from the day you received it. Make a copy for your own records. Please print clearly.

Part 1 Applicant Information

Last Name	First Name and Initial	Gender ☐ Male ☐ Female
Address		
City	Province	Postal Code
Birth date (yyyy/mm/dd)	Home Telephone	Work Telephone Ext

Part 2 Benefit Election

I choose to receive the following benefit:

☐ Income Replacement Benefit

☐ Non-Earner Benefit

☐ Caregiver Benefit

Part 3 Signature

I certify that the information provided is true and correct. I understand that it is an offence under the *Insurance Act* to knowingly make a false or misleading statement or representation to my insurer under a contract of insurance. I further understand that it is an offence under the federal *Criminal Code* for anyone, by deceit, falsehood, or other dishonest act, to defraud or attempt to defraud an insurance company. I further understand that the use and disclosure of information contained on this form is subject to the terms described on my Application for Accident Benefits.

Name of Applicant or Substitute Decision Maker (please print)	Signature of Applicant or Substitute Decision Maker	Date (yyyy/mm/dd)
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Return this form to:

Employer's Confirmation Form (OCF-2)

Use this form for accidents that occur on or after November 1, 1996.

Claim Number:	
Policy Number:	
Date of Accident: (YYYYMMDD)	

If your insurance company asks you to complete this form, fill in parts 1 through 3 and give the form to your employer or former employer(s) to complete the rest. Please have each employer you listed on your **Application for Accident Benefits** form fill out a separate form. Extra forms are available from your insurance company. Your employer(s) will return the form(s) directly to the insurance company. **Please print clearly.**

Part 1 Applicant Information

Last Name	First Name and Initial		Gender ☐ Male ☐ Female
Address			
City	Province	Postal Code	
Birth Date (YYYYMMDD)	Home Telephone	Work Telephone	

Name of Insurance Company		
Address		
City	Province	Postal Code
Name of Policyholder		Policy Number

Part 2 Authorization

I authorize my employer to disclose to my insurance company or its authorized representative, any relevant information about my employment, including copies of relevant documents directly relating to my application for income replacement benefits and details of any collateral sources of income or benefits.		
Name of Applicant or Substitute Decision Maker (please print)	Signature of Applicant or Substitute Decision maker	Date (YYYYMMDD)

Part 3 What Salary Information is Needed

Employed	Self-Employed				
To my employer or former employer: I was involved in an automobile accident on: (YYYYMMDD)	If you are or were self-employed at any time during the four weeks before the accident, please consider yourself the employer for the purpose of completing this form. I was self-employed four weeks before the accident and I designate the following time period to be used to calculate my income (check one ☒ and proceed to part 4).				
To process my application, my insurance company needs information about my salary for the following period before the date of the accident. (If you check ☒ both, the insurance company will determine which period provides the highest benefit.) 4 weeks ☐ 52 weeks ☐	<table><tr><td>☐ 52 weeks ☐ Last complete fiscal year</td><td>From (YYYYMMDD)</td></tr><tr><td></td><td>To (YYYYMMDD)</td></tr></table>	☐ 52 weeks ☐ Last complete fiscal year	From (YYYYMMDD)		To (YYYYMMDD)
☐ 52 weeks ☐ Last complete fiscal year	From (YYYYMMDD)				
	To (YYYYMMDD)				

The rest of this form must be completed by your employer or former employer.

**Part 4
Applicant's
Income**

☐ additional
sheets attached

What was the applicant's actual gross income for the period before the accident date checked ☒ above? If the employee worked only part of the period, list the gross income received from you during the period.

	Gross Income Last 4 Weeks Before Accident				Gross Income for Last 52 Weeks Before Accident		Self-Employed: Gross Income
	Week 1	Week 2	Week 3	Week 4	No. of Weeks Worked	Gross Income	
Salary							
Tips, Commissions							
Other Monetary Compensation							
Total							

Was the applicant absent from work for any time during the period checked (☒) in Part 3?

☐ Yes (Give details below) ☐ No

Are there any other types of compensation available from the employer?

☐ Yes (Give details below) ☐ No

**Part 5
Other Benefits**

To your knowledge, is the applicant eligible to receive the following benefits?

Income Continuation Benefit (short-term or long-term disability plan)	No ☐	Yes ☐	Insurance Company	Policy No.
Supplementary Medical, Rehabilitation or Attendant Care Benefits	No ☐	Yes ☐	Insurance Company	Policy No.
Sick Leave	No ☐	Yes ☐	Did applicant use sick credits following the auto accident?	No ☐ Yes ☐

Is the applicant a member of a union?

No ☐ Yes ☐

Does or did the applicant contribute to the Canada Pension Plan or a similar plan?

No ☐ Yes ☐

Was a claim filed with the Workplace Safety and Insurance Board as a result of this accident?

No ☐ Yes ☐

**Part 6
Employment
Details**

☐ additional
sheets attached

Date of Employment	From (YYYYMMDD)	To (YYYYMMDD)	Latest Job Title
Last Date Worked:	(YYYYMMDD)	Date of Return to Work (if applicable)	(YYYYMMDD)
Brief Job Description			
Essential Tasks of Job (Attach physical demand analysis if available):			
Type of Employment	Full-Time ☐	Part-Time ☐	Casual ☐ Seasonal ☐

**Part 7
Employer
Information**

Company Name	Contact Person
Address	Tax Reg. # or Business Identification Number (BIN)
City	Province
Telephone Number	Postal Code
Fax Number	

Part 8
Signature

I CERTIFY THAT THE INFORMATION PROVIDED IS TRUE AND CORRECT.

I UNDERSTAND THAT IT IS AN OFFENCE UNDER THE INSURANCE ACT to knowingly make a false or misleading statement or representation to an insurer under a contract of insurance. Regulated sectors may be subject to an examination or inquiry about matters in connection with a licence and or unfair or deceptive act or practice. Non-compliance with applicable regulations may result in enforcement actions ranging from an administrative monetary penalty to prosecution under the Provincial Offences Act.

I FURTHER UNDERSTAND THAT IT IS AN OFFENCE UNDER THE FEDERAL CRIMINAL CODE for anyone, by deceit, falsehood, or other dishonest act, to defraud or attempt to defraud an insurance company. This information will be used for processing payments of claims; identifying and analysing the nature, effects and costs of goods and services that are provided to automobile accident victims, by health care providers; and **PREVENTING, DETECTING AND SUPPRESSING FRAUD.**

Signature of Employer:

Date (YYYYMMDD)

Employer Name: (Please print)

Title

Return this form to:

Expenses Claim Form (OCF-6) <i>Use this form for accidents that occur on or after January 1, 1994</i>	
Claim Number:	
Policy Number:	
Date of Accident: (YYYYMMDD)	

Claim Number:	
Policy Number:	
Date of Accident: (YYYYMMDD)	

Claim Number:	
Policy Number:	
Date of Accident: (YYYYMMDD)	

Policy Number:	
Date of Accident: (YYYYMMDD)	

Date of Accident: (YYYYMMDD)	
--	--

Only use this form to claim expenses not submitted on your behalf by your health care provider.

You can apply for reasonable and necessary expenses incurred as a result of the accident and not covered under another plan. Such expenses may include the costs of medical and rehabilitation treatment, lost educational expenses, caregivers, attendant care and housekeeping services, transportation expenses, expenses of visitors, and the cost to repair or replace lost or damaged clothing, dentures, glasses, prostheses, hearing aids, etc. Please attach all bills and receipts.

Part 1 Applicant Information	Last Name		First Name and Initial		Gender ☐ Male ☐ Female	
	Address					
	City		Province		Postal Code	
	Birth date (yyyy/mm/dd)		Home Telephone		Work Telephone Ext	

Part 2
Expenses

☐ additional sheets
attached

Attach all bills and receipts. If a bill or receipt is not available, please explain. If you need more space, please attach additional sheets.

Item	Date	Description of Goods and Services and Name of Service Provider	Amount
Total Amount			

Part 3
Signature

I certify that the information provided is true and correct. I understand that it is an offence under the *Insurance Act* to knowingly make a false or misleading statement or representation to my insurer under a contract of insurance. I further understand that it is an offence under the federal *Criminal Code* for anyone, by deceit, falsehood, or other dishonest act, to defraud or attempt to defraud an insurance company. I further understand that the use and disclosure of information contained on this form is subject to the terms described on my Application for Accident Benefits.

Name of Applicant or Substitute Decision Maker (please print)	Signature of Applicant or Substitute Decision Maker	Date (yyyy/mm/dd)



AUTHORIZATION AND DIRECTION

TO:

FROM: **MATRIX LEGAL SERVICES**
PROFESSIONAL CORPORATION
2190 Warden Avenue, Suite 202
Scarborough, Ontario M1T 1V6

RE:

DATE OF ACCIDENT:

I, _____ do hereby authorize and direct you to release to my representatives, **Matrix Legal Services Professional Corporation**, 2190 Warden Avenue, Suite 202, Scarborough, Ontario, M1T 1V6, my file and all relevant and pertinent information, document, reports and all papers relevant to the above- reference, and let this be your good and sufficient authority for so doing.

Dated at Toronto, this _____ day of _____ 20____.

Witness

X _____
Signature



NOTICE OF CHANGE OF ADDRESS

TO:

FROM:

RE: Motor Vehicle Collision Date:

Policy No.:

Claim No.:

KINDLY AMEND YOUR RECORDS TO INDICATE that payments of benefits and all future correspondence between yourselves and the undersigned in connection with the above – captioned policy and collision are to be made to me at the following address:

C/O MATRIX LEGAL SERVICES
PROFESSIONAL CORPORATION
2190 Warden Avenue, Suite 202
Scarborough, Ontario M1T 1V6

Kindly forward to my said representatives a copy of the statutory accident benefits schedule and a copy of the motor vehicle accident policy in effect on the date of the collision.

Dated at Toronto, this _____ day of _____, 20__.

Witness

X_____
Signature



AUTHORIZATION

TO: Ministry of Health

FROM:

RE: Motor Vehicle Accident

HEALTH CARD NO.:

I hereby instruct and direct the Ministry to health to release my representatives, **Matrix Legal Services Professional Corporation**, 2190 Warden Avenue, Suite 202, Scarborough, Ontario M1T 1V6, copies of the decoded O.H.I.P Summary regarding insured services rendered by Health Practitioners to the undersigned, from _____ to the present date.

And for so doing, this shall be your good and sufficient irrevocable authority.

DATED AT TORONTO, THIS _____ DAY OF _____, 20____.

Witness

X_____
Signature



AUTHORIZATION

TO:

RE:

I, _____, **DO Hereby Authorize** the above named company (or persons) to furnish to my representatives, **Matrix Legal Services Professional Corporation**, 2190 Warden Avenue, Suite 202, Scarborough, Ontario M1T 1V6, all employment records, opinions, reports, abstracts or excerpts of any records or any other information or documents requested by my representative that you may have in your custody or under your control.

The undersigned waives privilege with respect to the release of the information requested to **Matrix legal Services Professional Corporation** to any third parties to whom Canadian Personal Injury Consultants see fit to release the information requested.

DATED AT TORONTO, THIS _____ DAY OF _____, 20____.

Witness

X_____
Signature



MEDICAL AUTHORIZATION

TO:

RE:

I, _____ DO HEREBY AUTHORIZE AND DIRECT

to release to my representatives, **Matrix Legal Services Professional Corporation**, 2190 Warden Avenue, Suite 202, Scarborough, Ontario M1T 1V6, all X-Rays, pathological reports, surgical reports, emergency reports, radiology reports, nursing records, reports of diagnostics tests, prognosis notes, medical reports and/ or abstracts or experts of any records or any other information or documents possessed by you and for so doing, let this be your good and sufficient authorization.

I hereby waive any privilege I may have with respect to the Information requested as between myself, my representative and third parties to whom my representative may see fit to release the information.

DATED AT TORONTO, THIS _____ DAY OF _____, 20____.

Witness

X _____
Signature

Consent Authorization Form: Disclosure of Personal Claims History (PCH) Information to Third Party

Instructions

The purpose of this form is to authorize the Ministry of Health to disclose your Personal Claims History (PCH) information directly to a third party named in Section 3 based on your consent. If you do not complete all mandatory parts of this form, processing may be delayed.

A Personal Claims History (PCH) is a computer record of claims paid by the Ontario Health Insurance Plan (OHIP) under an individual health card number. These records are maintained for seven (7) years for billing and accounting purposes. A PCH is not a record of medical history or diagnosis. To obtain a record of the services provided by specific health care professionals, individuals should contact the health care provider(s) directly.

Who can consent to the disclosure of PCH information to a third party?

You can consent to the disclosure of PCH information directly to a third party if you are the individual to whom the record relates or if you are the individual's "Substitute Decision Maker" authorized under the *Personal Health Information Protection Act, 2004* (see more information about what this means, including relevant information for parents, below).

What does "Substitute Decision Maker" mean and who is authorized under the *Personal Health Information Protection Act, 2004* to act as the individual's "Substitute Decision Maker"?

A Substitute Decision Maker is someone who is authorized under the *Personal Health Information Protection Act, 2004* to consent on behalf of an individual to the collection, use or disclosure of personal health information about the individual. Substitute Decision Makers can consent to the disclosure of personal health information on behalf of individuals who do not have capacity to consent. You can act as a Substitute Decision Maker for a person who does not have capacity to consent to the disclosure of their own PCH if you have capacity **and** you are the highest ranked person in this list:

1. a Substitute Decision Maker within the meaning of the *Health Care Consent Act*, if the collection, use or disclosure of information is connected to the decision of a Substitute Decision Maker about the individual's treatment;
2. the guardian of the person or guardian of property;
3. the attorney for personal care or attorney for property;
4. the representative appointed by the Consent and Capacity Board;
5. the spouse or partner;
6. a child, a parent, a Children's Aid Society or other person who is allowed by law to give or refuse consent in the place of the parent;
7. a parent who has a right of access to the child;
8. a sibling;
9. a relative; or
10. the Public Guardian and Trustee, if no other person meets the requirements.

Who can consent for a child who is under 16 years of age?

1. **The child**, so long as the child has capacity to consent
2. **A parent of the child** (including a child with capacity), a member of a Children's Aid Society, or another person who is legally able to consent in the place of the parent with the exception of the situations noted below.
 - A child under the age of 16 who consented to their own treatment must decide whether to consent to the collection, use or disclosure of their personal health information related to that treatment.
 - If a child under the age of 16 has capacity to make a PCH request and disagrees with the decision of their parent (or the person legally able to make the request in place of the parent), the child's decision overrides the decision of their parent (or the person legally able to make the request in place of the parent).

For clarity, there are two situations in which the parent (or other legally authorized person) cannot give consent:

1. If the personal health information relates to a treatment that a child consented to (or refused to consent); or
2. If the child is capable of consenting and makes a decision about their personal health information that conflicts with the parent, or other legally authorized person's decision.

Contact Information

For questions or assistance to complete this form, call 1-800-262-6524, or visit our website at:

http://www.health.gov.on.ca/en/public/programs/ohip/phi_access/default.aspx.

Once this form is completed, you must print, sign and provide the form to the Third Party named below.

Do not send this form to the ministry. It is the responsibility of the third party to submit the request.

Fields marked with an asterisk (*) are mandatory.

Section 1- Type of Request

Type of Request *

- ☒ Full Personal Claims History (includes service dates, fee service code (FSC) and FSC description, fee paid, provider and clinic details)
- ☐ Limited Personal Claims History (includes service dates and provider number only)

Time Period of Request (choose one option only) *

PCH information is being requested for the following specific period of time that does not exceed 7 years.

☐ **Option 1**

Start Date (yyyy/mm/dd)

End Date (yyyy/mm/dd)

or

☐ **Option 2**

Start Date (yyyy/mm/dd)

☐ Date request is processed

Section 2 – The individual whose PCH will be disclosed under this form

Last Name *	or Single Name *	Middle Name
First Name (not applicable if Single Name entered) *	Ontario Health Card Number *	Date of Birth (yyyy/mm/dd) *

Address associated with Ontario Health Card *

Unit Number	Street Number *	Street Name *	PO Box
City *	Province *	Postal Code *	Country
	Ontario		Canada

Section 3 – Authority to Request the PCH

Note: the Ministry is not responsible for any subsequent use or disclosure of the personal health information (PHI) by the Third Party.

I, _____ consent to the Ministry of Health disclosing the personal
(Last Name, First Name of person providing consent) *
claims history for _____ to
(Last Name, First Name of individual named in Section 2)

MEDCHART INC for the purpose of LITIGATION AND PERSONAL RECORD KEEPING.

I have the legal authority to consent to this disclosure as I am:

Note: please select **one** of the following 4 options: *

- ☐ **Option 1:**
the individual whose PCH is being disclosed
- ☐ **Option 2:**
I am the individual's parent or other person lawfully entitled to consent on behalf of a child who is under the age of 16.
You are not entitled to consent to the disclosure of a child's personal claims history to a third party on behalf of the child if it relates to treatment provided to the child that the child consented to on their own or if the child is capable and disagrees with you consenting to the disclosure of their personal claims history to the third party.
- ☐ **Option 3:**
the Substitute Decision Maker for the individual whose PCH is being disclosed, who does not have capacity to consent to this disclosure.
Please indicate your relationship to the individual. See list of authorized Substitute Decision Makers included in the instructions to this form.
Relationship
- ☐ **Option 4:**
the individual's estate trustee or individual who has assumed responsibility for the administration of the individual's estate.

Important: Making a false assertion is an offence under the Personal Health Information Protection Act, 2004 **.**

The information being disclosed contains personal health information

Contact Telephone Number	Signature *	Date (yyyy/mm/dd) *

CONTINGENCY FEE RETAINER AGREEMENT

TO: MATRIX LEGAL SERVICES PROFESSIONAL CORPORATION

FROM:

RE: Motor Vehicle Collision

1. RETAINER

I, _____, hereby retain and instruct **MATRIX LEGAL SERVICES PROFESSIONAL CORPORATION** (hereinafter referred to as “you” and “your”) whose municipal address and telephone number are 2190 Warden Ave, Suite 202, Toronto, Ontario, M1T 1V6 Telephone – 416-494-3857 to assume carriage of my claim for damages, statutory accident benefits Claims for the **CLIENT** may have arising out of motor vehicle collision, which occurred on or about the _____ day of _____, 20____ in _____ in the province of Ontario. The CLIENT hereby acknowledges to commence case conferences and hearings at the Licensing Appeal Tribunal (LAT) or a court action in the Superior Court of Justice – Small Claims Court, as the case may be, for recovery of said damages and I instruct you to take whatever steps you may deem necessary and appropriate. This authority shall extend to conducting such day-to-day handling, proceedings, negotiations, or discussions and making such disclosures and compromises therein as you deem appropriate for the successful completion of my case. I understand and agree that other lawyers and paralegals of your corporation, or your agents at your discretion, may carry out parts of my case. I acknowledge that unforeseen circumstances may arise which may make it financially unfeasible to carry on with my case and that if that should occur, I will be informed of those circumstances and either of us will be entitled to terminate this retainer at that time.

The client acknowledges that there has been a discussion of the options of retaining the paralegals other than by way of a contingency fee agreement, including retaining the paralegal by way of an hourly rate retainer. The client has been advised by the paralegals that hourly rates may vary among paralegals and that the client can discuss the matter with other paralegal/solicitors to compare rates. The client indicates that he/she prefers to retain the paralegals by way of a contingency fee agreement.

CONTINGENCY FEE RETAINER AGREEMENT

The client acknowledges having been advised by the paralegals that all usual protections and controls on agreements between a paralegals and client, as defined by the Law Society of Ontario and the common law, apply to the within contingency fee agreement.

The client has been informed that the client retains the right to make all critical decisions regarding the conduct of the matter.

2. LEGAL FEES

I acknowledge, understand and agree that:

- a) If recovery of money is made on my behalf by way of settlement, LAT order, or judgment in my favor, I am responsible for your fees which are twenty-five percent () of the amount you are able to recover on my behalf plus Harmonized Sales Tax ("HST") but exclusive of disbursements. For example, if you recover \$20,000.00 for my claim plus \$100.00 for disbursements, your total fee will be \$5,000.00 (of \$20,000.00) plus HST. The above noted percentage has been arrived at by taking into consideration the likelihood of success, the nature and complexity of the claim, and the expense and risk of pursuing it.
- b) In addition to the above, I am also responsible for, in any event, the monies advanced or paid out by you on my behalf as expenses in support of this claim, called "disbursements", plus associated Harmonized Sales Tax.
- c) If my case results in a structured settlement, involving periodic payment to me of my monies over an extended period of time, fees will be calculated on the amount of the cost of the structure to the person or institution responsible for settlement and I agree to pay such fees at the time of settlement.
- d) A referral fee may be payed to another lawyer, paralegal, or the other entity in accordance with the applicable *Rules of Professional Conduct* as administered by the Law Society of Ontario. Such referral fee will be taken out of the paralegals' contingency fee. The referral fee will not increase the total amount of fees charged to you as the client. By agreeing to have the paralegals act as

CONTINGENCY FEE RETAINER AGREEMENT

your legal representative you consent to the payment of the referral fee at conclusion of your claim.

3. SETTLEMENT

I acknowledge that settlement proposals may be presented to me, which will be discussed by us and followed by your recommendation, and that I alone have the right to decide to accept such an offer. If you recommend acceptance of such a settlement proposal as reasonable and appropriate and I reject your recommendation and elect to proceed with my case, I agree that all fees, disbursements and associated taxes that are unpaid at that date will immediately become due and payable. Such fees will be calculated at your minimum hourly rate in effect from time to time, with the current rates set out in **paragraph 4** of this agreement, adjusted to take into account a combination of factors including the time spent, the complexity of my case, and the result likely to be achieved. Fees thereafter will continue to be calculated in this way until my case is concluded, at which time you may choose to recalculate my fees in accordance with paragraph 2 of this document, and if you do, I will receive a credit for monies already paid pursuant to this paragraph.

Similarly, if you determine that it has become financially unfeasible to carry on with my case and I still elect to proceed with my case, the fees and disbursements will be payable in the same manner and to the same extent as in the case of the rejection of a recommended settlement hereunder.

The client acknowledges that where he/she has previously retained a paralegal/lawyer for the matter which he/she now retains the paralegals to advance and such previous paralegal/lawyer has rendered an account for services, the client shall remain personally responsible for payment of the account of such previous paralegal/lawyer.

It is agreed that if no money is recovered by settlement, judgment, or order **no** fees shall be charged or billed to the client. However, the client remains responsible for disbursements and applicable taxes expended on their behalf by the paralegals.

CONTINGENCY FEE RETAINER AGREEMENT

4. CURRENT RATES

I acknowledge that your current minimum hourly rates, which may be adjusted from time to time, are as follows:

Thiparanjan Sivarajalingam: \$250.00 per hour

5. TERMINATION OF RETAINER

If, for any reason whatsoever, before your services are completed your retainer is terminated, I agree that all fees, disbursements and associated taxes unpaid at that date will immediately become due and payable. Such fees are to be calculated at your minimum hourly rate in effect from time to time, adjusted to take into account a combination of factors including the time spent, the complexity of my case, the result which could likely have been achieved, and the fee calculation set out in **paragraph 2** herein.

6. DISCLOSURE OF COMMUNICATIONS

I understand that circumstances may occur which make it necessary or desirable for you to disclose communications, written or oral, between yourself or members of your firm and me. You are expressly and irrevocably authorized, in your sole discretion, to disclose any communications, written or oral, between yourself, or members of your firm and me, as you deem necessary.

DATED at _____, this _____ day of _____, 20____

(Print Client's Name)

(Client's Signature)

(Client's Phone No.:)

MATRIX LEGAL SERVICES PROFESSIONAL
CORPORATION